



CHAPTER xxv

An Act to confirm a Provisional Order made by the Minister of Transport and Civil Aviation under the Reading Corporation Act 1935 relating to Reading Corporation trolley vehicles. [31st July 1957.]

WHEREAS under the authority of section twelve of the Reading Corporation Act 1935 the Minister of Transport and Civil Aviation has made the Provisional Order set out in the schedule to this Act annexed:

And whereas a Provisional Order made by the Minister of Transport and Civil Aviation under the authority of the said section is not of any validity or force whatever until the confirmation thereof by Act of Parliament:

And whereas it is expedient that the Provisional Order made by the Minister of Transport and Civil Aviation under the authority of the said section and set out in the schedule to this Act annexed be confirmed by Act of Parliament:

Be it therefore enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Order set out in the schedule to this Act annexed shall Confirmation be and the same is hereby confirmed and all the provisions thereof of Order in in manner and form as they are set out in the said schedule shall schedule. from and after the passing of this Act have full force and validity and the date of the same shall be the date of the passing of this Act.

2. This Act may be cited as the Reading Corporation (Trolley Short title. Vehicles) Order Confirmation Act 1957.

SCHEDULE

READING CORPORATION
(TROLLEY VEHICLES)

Provisional Order authorising the mayor aldermen and burgesses of the borough of Reading to use trolley vehicles upon additional routes in the borough of Reading

Short and
collective titles.

1.—(1) This Order may be cited as the Reading Corporation (Trolley Vehicles) Order 1957.

(2) The Reading Corporation (Trolley Vehicles) Acts and Orders 1914 to 1946 and this Order may be cited together as the Reading Corporation (Trolley Vehicles) Acts and Orders 1914 to 1957.

Interpretation.

2. In this Order the following expressions have the meanings hereby assigned to them respectively (that is to say):—

“the Act of 1933” means the Local Government Act 1933;

“the Act of 1935” means the Reading Corporation Act 1935;

“the borough” means the county borough of Reading;

“the Corporation” means the mayor aldermen and burgesses of the borough;

“the Minister” means the Minister of Transport and Civil Aviation;

“the Order of 1946” means the Reading Corporation (Trolley Vehicles) Order 1946;

“trolley vehicle” has the meaning assigned to it by section 4 (Interpretation) of the Act of 1935.

Power to use
trolley vehicles
upon certain
routes.

3. Subject to the provisions of this Order and to the provisions of the Act of 1935 so far as they relate to trolley vehicles and are applicable to this Order the Corporation may use trolley vehicles upon the following routes in the borough in addition to any routes upon which they are already authorised to use trolley vehicles (that is to say):—

Route No. 1 (3 furlongs 2·75 chains or thereabouts in length) commencing at the termination of Route No. 9 authorised by the Order of 1946 proceeding along Kentwood Hill to and terminating at the junction of Kentwood Hill with Armour Hill:

Route No. 2 (5 furlongs 7·03 chains or thereabouts in length) commencing by a junction with Route No. 7 authorised by the Order of 1946 at the junction of Hartland Road with Basingstoke Road proceeding along Hartland Road to and terminating at the junction of Hartland Road with Whitley Wood Road:

Route No. 3 (3 furlongs 1·84 chains or thereabouts in length) commencing at the termination of Route No. 8 authorised by the Order of 1946 proceeding along Northumberland Avenue to and terminating at the junction of that avenue with Whitley Wood Road:

Route No. 4 (1 mile 7·60 chains or thereabouts in length) commencing at the termination of Route No. 7 authorised by the Order of 1946 proceeding north-eastwards along Whitley Wood Road to the junction of that road with Shinfield Road:

Provided that before equipping any route to include a turning-point or arranging for a new turning-point on any route the Corporation shall submit plans of the turning-point to the Minister for approval.

4. If the Corporation shall not have commenced to use trolley vehicles upon each of the routes authorised by this Order within five years from the passing of the Act confirming this Order or such extended time as the Minister may upon the application of the Corporation allow the powers conferred by this Order with reference to the use of trolley vehicles upon the route or routes upon which the Corporation shall not have commenced to use trolley vehicles shall cease to be exercisable.

Period for completion of trolley vehicle equipment.

5.—(1) Subject to the provisions of this Order the Corporation shall have power in addition and without prejudice to their powers of borrowing under the Act of 1933 from time to time to borrow without the consent of any sanctioning authority for or in connection with the purposes mentioned in the first column of the following table the respective sums mentioned in the second column of the said table and they shall pay off all money so borrowed within such periods as the Corporation may determine not exceeding those respectively mentioned in the third column of the said table (namely):—

(1)	(2)	(3)
Purpose	Amount	Period for repayment calculated from the date or dates of borrowing
(a) The provision of trolley vehicles.	£30,000	Fourteen years.
(b) The provision of electrical equipment and the construction of other works necessary for working trolley vehicles along the routes authorised by this Order.	£15,000	Twenty years.
(c) The payment of the costs charges and expenses of this Order.	The sum requisite.	Five years.

(2) The provisions of Part IX of the Act of 1933 so far as they are not inconsistent with this Order shall extend and apply to money borrowed under this section as if it were borrowed under Part IX of that Act and the period fixed for the repayment of any money borrowed under this section shall as respects that money be the fixed period for the purpose of the said Part IX.

(3) In the application of the said provisions of the Act of 1933 to the borrowing of any further money for the purposes of this Order the Minister shall be the sanctioning authority.

6. It shall not be lawful to exercise the powers of borrowing conferred by this Order (other than the power of borrowing to pay the costs charges and expenses of preparing obtaining and confirming this Order) otherwise than in compliance with the provisions of any order for the time being in force made under section 1 of the Borrowing (Control and Guarantees) Act 1946.

7. This Order shall be deemed to be an enactment passed before and in force at the passing of the Town and Country Planning Act 1947 for the purposes of subsection (4) of section 13 and subsection (1) of section 118 of that Act.

8. The costs charges and expenses of and incidental to the preparing and obtaining and confirming of this Order or otherwise incurred in relation thereto as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation.

Table of Statutes referred to in this Act

Short title	Session and chapter
Local Government Act 1933	23 & 24 Geo. 5 c. 51
Reading Corporation Act 1935	25 & 26 Geo. 5 c. xc
Borrowing (Control and Guarantees) Act 1946	9 & 10 Geo. 6 c. 58
Town and Country Planning Act 1947	10 & 11 Geo. 6 c. 51

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